

As city staff review data centre proposal, Burlington, Ont., councillors vote down data centre moratorium | CB

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As city staff review data centre proposal, Burlington, Ont., councillors vote down data centre moratorium

Following Hamilton, Burlington was the second city in as many weeks to vote on pausing data centre development. Burlington, Ont., joined municipalities including Hamilton this week in debating how best to regulate data centres. As city staff review a developer's application to build a two-storey data centre, councillors voted against studying a one-year moratorium on such facilities. Councillors and the mayor did direct staff to review the rules around data centres and also asked the federal and provincial governments to work with municipalities to create regulations for the facilities that securely store, process and distribute digital information. Coun. Lisa Kearns (Ward 2) who moved the moratorium motion at a July 21 council meeting, told CBC Hamilton it was "unfortunate it did not succeed." She had argued a pause on building data centres would give the city the time it needs to ensure it has the right rules in place for the rapidly growing industry. The growth of artificial intelligence (AI) has accelerated the construction of data centres, which has in turn sparked protests across Canada over issues like the amount of water and energy needed to run these sites. Experts have told CBC Hamilton data centres are governed like other industrial projects and not by specific rules. Seeing a gap, some local leaders are attempting to create data centre-specific regulations. A similar effort to Kearns's failed in neighbouring Hamilton on July 15, when that city's council voted 10-6 against pausing data centre development for a year while assessing and developing new rules. Councillors who opposed the moratorium said they feared deterring investment and heard private legal guidance suggesting the bylaw would be found to be outside their jurisdiction. Coun. Rory Nissan (Ward 3), who voted against Kearns' moratorium motion, shared a news release Wednesday, saying the pause would have been "costly." "Common sense has prevailed over a campaign of fear," Nissan — who is running for mayor — said. "We have ensured residents are protected, with clear rules for data centres in Burlington." He added that in his opinion, "Any data centre proposal in Burlington must: not cause community harm; impose no costs on taxpayers; not strain local resources; and provide tangible value for residents." For her part, Kearns said responsible growth "means asking the right questions before major land-use decisions are made." In a statement following the July 21 vote, she added proposals should be "supported by robust environmental review, and include a clear understanding of impacts on energy, infrastructure, noise, tax base, and neighbouring communities." Kearns is also running for mayor this year, challenging incumbent Mayor Marianne Meed Ward, the only other member of council who supported her moratorium motion.

Meed Ward moved the resolution directed at the federal and provincial governments. “We know that demand for data centres is growing across Ontario, and I believe we need standard regulations across the country, rather than piece-meal, case by case responses,” the mayor said on Instagram July 15. Meed Ward also chairs Ontario’s Big City Mayors Caucus — one of several municipal organizations Burlington City Council shared their resolution with. Data centres will be a ‘primary’ election issue: Kearns Kearns, who grew up in Hamilton, was one of dozens of people who spoke about data centre development before a June Committee of Adjustment meeting. Hundreds of people showed up that day to voice concerns with data centre development. “People were genuinely seeking to have their voice heard by their elected officials in a way that I don’t think we’ve seen for a good a good long time,” Kearns said, adding people in Burlington have been similarly engaged in data centre politics. She told CBC Hamilton she thinks data centres will be a “primary election issue.” “The electorate has eyes on this,” she said. “They are not pleased with the way that this is being rolled out into their communities and something will have to change.” Two-storey data centre proposed in Burlington The meeting where the moratorium was discussed was the longest this term at over nine hours, Kearns said. Seventeen people registered to speak on the motion, including Mikayla Woodward, a spokesperson for Toronto-based Gliese.AI Incorporated. That’s the company behind a proposed data centre at 3110 South Service Rd., by the QEW and Guelph Line. “We hear the concerns,” Woodward said, after several residents shared worries about the potential impacts of data centres. “We are open to being as humanly transparent and working alongside the city, provincial and federal governments as we see fit and you guys see fit,” she told councillors. At the council meeting, Woodward said if approved, this data centre would be Gliese’s first. She said it would not be big enough to train AI models, but that it would be a multi-purpose facility people working with AI could use. CBC Hamilton requested an interview with Woodward’s team and asked for more information about the business and landowner. She said they were unable to schedule an interview or respond before publication. Property and business record searches show the plot of land on South Service Road is owned by a numbered company, 1000786469 Ontario Inc., which is headquartered in Toronto. According to an explainer on the city website and planning documents Meed Ward shared, the 17-megawatt, air-cooled facility is permitted under local zoning rules. The applicant submitted studies including on noise and environmental impact, the mayor said. City staff will review the application, as will Burlington Hydro.